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File No.: EXP202408154

## RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

### FACTS

FIRST: On May 23, 2024, a complaint was filed with the Spanish Agency for Data Protection against A.A.A. with NIF \*\*\*NIF.1 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant states that the respondent has a video surveillance system on their property, with cameras directed at the public road and access to the complainant's residence, and that they use it to capture the license plates of their vehicles and monitor their movements, making posts about this in a Telegram group and on various social media. A report was made to the National Police on March 21, 2024.

The complainant provides photographs of the cameras and their orientation, a photocopy of the report to the Police, and messages via Telegram.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent/ALIAS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 12, 2024, as recorded in the acknowledgment of receipt in the file.

On June 25, 2024, a response was received by this Agency indicating the following:

They have three security cameras at their residence: one in the parking area, another at the back, and another on the roof focusing on the photovoltaic installation.

All monitored areas are their property, and the cameras only activate if there is movement. The images are stored for one week.

They have never been on Telegram, so they have not been able to disseminate any images.

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THIRD: On July 24, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

### LEGAL GROUNDS

I

#### Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

#### Processing for Video Surveillance Purposes

Article 22.1 and 2 of the LOPDGDD states the following:

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the security of persons and property, as well as their facilities.

2. Images of the public road may only be captured to the extent that it is essential for the purpose mentioned in the previous section.

However, it will be possible to capture images of the public road to a greater extent when necessary to guarantee the security of strategic property or facilities or infrastructures linked to transportation, without in any case implying the capture of images from within a private home."

Article 5 of the GDPR, "Principles relating to processing," provides in paragraph 1:

"Personal data shall be: processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency')"

The GDPR regulates the lawfulness of processing in its Article 6, which determines in paragraph 1 under what circumstances the processing of third-party data is lawful:

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"1. The processing shall only be lawful if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

III

Claimed Facts

In the present case, the claim is examined which states that the respondent has a video surveillance system on their property, with cameras directed at the public road and access to the claimant's residence, and that it is used to capture the license plates of their vehicles and monitor their movements, making publications about this in a Telegram group and on various social networks.

On June 25, 2024, a response was received from the respondent regarding the facts subject to transfer, arguing that the installed cameras only record their property and that they have never participated in Telegram.

IV

Presumption of Innocence

The principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable way for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the evidence and a contradictory procedure in which one's own

positions can be defended. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal ruling.

The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction may be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

IV

#### Conclusion

Therefore, based on what is indicated in the previous paragraphs, after analyzing the facts and evidence provided, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection or that justifies the removal of the installed device from its location.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the...

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Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, in accordance with the provisions of article 46.1 of the aforementioned Law.

940-301023

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